



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND
6506 HAMPTON BLVD
NORFOLK, VA 23508-1278

J&A# 26-05

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

The contracting activity is Naval Facilities Engineering Systems Command, Atlantic. The procuring contracting office is the Naval Facilities Engineering Systems Command, Atlantic located in Norfolk, VA.

2. Description of the Action Being Approved.

This Justification and Approval seeks to require direct coordination by the contractor to obtain services from Unitil for modifications to the natural gas system included in solicitation N6247026R0004 Military Construction (MILCON) P1080 Design-Bid-Build, Power Reliability and Water Resiliency Upgrades, Portsmouth Naval Shipyard, Kittery, Maine.

3. Description of Supplies/Services.

As part of solicitation N6247026R0004 for the Power Reliability and Water Resiliency Upgrades, a natural gas main is required to be installed [REDACTED] and a gas regulating station needs to be constructed [REDACTED]. In addition, the existing gas regulating station [REDACTED] is to be demolished [REDACTED] and a new gas regulating station is to be constructed nearby.

The natural gas system at Portsmouth Naval Shipyard is owned by Unitil, the only public utility capable of providing natural gas to the Shipyard. The construction of the regulating stations and the gas line is being procured under the referenced solicitation.

This acquisition will solicit proposals utilizing full and open competition. The estimated value of the work included in this construction solicitation is approximately [REDACTED], and the estimated value of the utility subcontracting services that are the subject of this J&A is approximately [REDACTED]. The project will be incrementally funded by FY26 through FY30 MILCON funds. The work under this contract is required to be completed within 1,930 days after award.

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority for this acquisition permitting other than full and open competition is 10 U.S.C. 3204(a)(1) which permits the use of limited suppliers when it is essential to the Government's requirements, as implemented by FAR 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

This Justification and Approval seeks to require direct coordination by the contractor to obtain services from Unitil that require modifications to the natural gas system for the above referenced solicitation. Unitil has restrictive rights as they own the natural gas system at PNSY and requires that only their support staff complete necessary work to the natural gas system. These services can only be fulfilled by Unitil.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A pre-solicitation notice, and solicitation will both be publicized on SAM.gov, in accordance with the requirements of FAR Part 5. The approved J&A will also be made publicly available as required by FAR 6.305.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

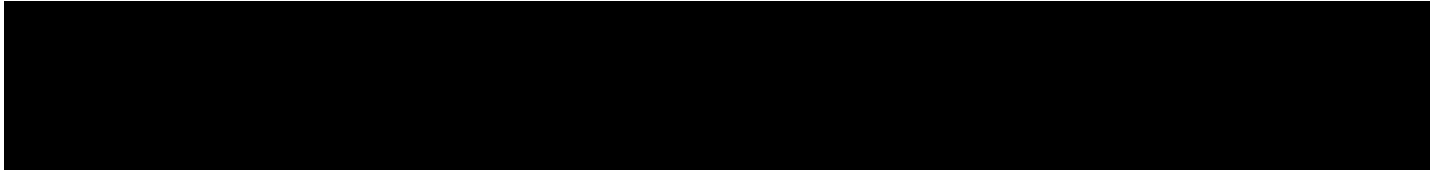
For the reasons set forth in Paragraph 5, this is a one-time exception to full and open competition for this portion of the effort required by the solicitation. There are no plans at this time to compete future contacts for the types of supplies/services covered by this document. If another potential source emerges, an assessment of whether competition for future requirements is feasible will be undertaken.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

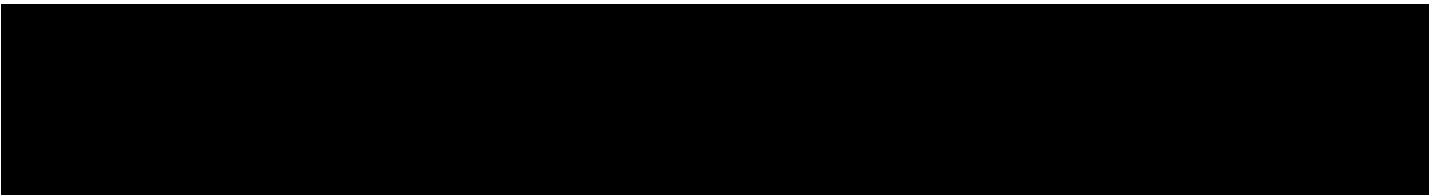
I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical and Requirements Cognizance:



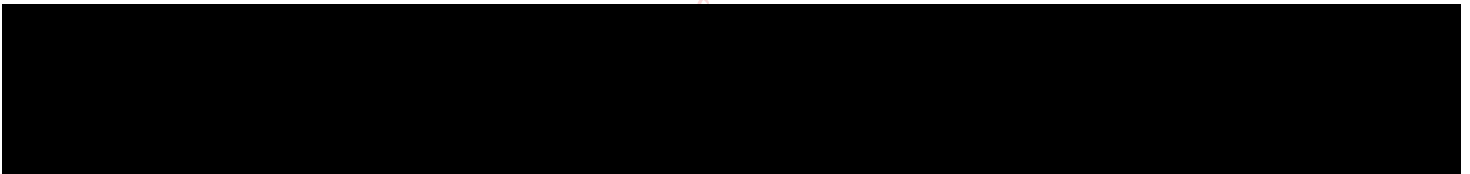
LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.



ECHELON III COMMANDER APPROVAL

Upon the basis of the above justification, I hereby approve, as Echelon III Commander, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

